

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Erin Sweeney	Team: Squad #09	CCRB Case #: 201508081	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Thursday, 09/17/2015 12:10 AM	Location of Incident: Ryer Avenue and East 182nd Street; 46th Precinct stationhouse; § 87(2)(b)	18 Mo. SOL 3/17/2017	Precinct: 46
Date/Time CV Reported Thu, 09/17/2015 7:28 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 09/23/2015 9:03 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Marco Morrone	10632	955223	PBBX
2. POM Daniel Kern	9634	954999	PBBX
3. POM Frank Greco	05795	953928	046 PCT
4. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Tell Beharry	00058	927910	PBBX
2. SGT Brian Shevitz	05114	946246	TB DT03
3. POM Daniel Bergman	01723	953677	046 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Marco Morrone	Abuse: At Ryer Avenue and East 182nd Street in the Bronx, PO Marco Morrone stopped § 87(2)(b)	A . Unsubstantiated
B . POM Daniel Kern	Abuse: At Ryer Avenue and East 182nd Street in the Bronx, PO Daniel Kern stopped § 87(2)(b)	B . Unsubstantiated
C . POM Marco Morrone	Abuse: At Ryer Avenue and East 182nd Street in the Bronx, PO Marco Morrone frisked § 87(2)(b)	C . Substantiated
D . POM Marco Morrone	Discourtesy: At Ryer Avenue and East 182nd Street in the Bronx, PO Marco Morrone spoke discourteously to § 87(2)(b)	D . Unsubstantiated
E . POM Daniel Kern	Discourtesy: At Ryer Avenue and East 182nd Street in the Bronx, PO Daniel Kern spoke discourteously to § 87(2)(b)	E . Unsubstantiated
F . POM Daniel Kern	Force: At Ryer Avenue and East 182nd Street in the Bronx, PO Daniel Kern used physical force against § 87(2)(b)	F . Substantiated
G . POM Marco Morrone	Force: At Ryer Avenue and East 182nd Street in the Bronx, PO Marco Morrone used physical force against § 87(2)(b)	G . Unfounded

Officer(s)	Allegation	Investigator Recommendation
H . POM Daniel Kern	Force: At the 46th Precinct stationhouse, PO Daniel Kern used physical force against § 87(2)(b)	H . Unsubstantiated
I . POM Marco Morrone	Discourtesy: At the 46th Precinct stationhouse, PO Marco Morrone spoke discourteously to § 87(2)(b)	I . Unsubstantiated
J . Officers	Discourtesy: At the 46th Precinct stationhouse, officers spoke discourteously to § 87(2)(b)	J . Alleged Victim Unavailable
K . POM Frank Greco	Force: At the 46th Precinct stationhouse, PO Frank Greco used physical force against § 87(2)(b)	K . Unsubstantiated
L . Officers	Force: At the 46th Precinct stationhouse, officers used physical force against § 87(2)(b)	L . Officer(s) Unidentified
M . POM Frank Greco	Abuse: At § 87(2)(b) PO Frank Greco prevented § 87(2)(b) from photographing an incident.	M . Exonerated
N . POM Frank Greco	Force: At § 87(2)(b) PO Frank Greco used physical force against § 87(2)(b)	N . Exonerated

Case Summary

On September 17, 2015, at approximately 12:10 a.m., at Ryer Avenue and East 182nd Street in the Bronx, § 87(2)(b) and § 87(2)(b) who are brothers, were walking with their girlfriends, § 87(2)(b) and § 87(2)(b). § 87(2)(b) was drinking from an open bottle of beer. PO Marco Morrone and PO Daniel Kern of Patrol Borough Bronx stopped § 87(2)(b) and § 87(2)(b) (**Allegations A and B**). PO Morrone frisked § 87(2)(b) (**Allegation C**). PO Morrone allegedly told § 87(2)(b) to “Shut the fuck up,” approximately four times throughout the incident (**Allegation D**). PO Kern allegedly told § 87(2)(b) to “mind his motherfucking business” (**Allegation E**). PO Kern allegedly punched § 87(2)(b) in the upper-right ribs (**Allegation F**). PO Kern placed his knee on § 87(2)(b)'s head and pushed his right cheek into the ground (subsumed in **Allegation F**). PO Morrone also allegedly placed his knee on § 87(2)(b)'s head (**Allegation G**). When § 87(2)(b) was on the ground, PO Kern allegedly punched him twice on the left side of the face (subsumed in **Allegation F**). After § 87(2)(b) was placed in handcuffs, and while he was still lying on the ground, PO Kern allegedly punched him two additional times in the face. Additional officers arrived, and approximately ten surrounded § 87(2)(b) while PO Kern punched him approximately three more times in the face and jaw (subsumed in **Allegation F**).

§ 87(2)(b) and § 87(2)(b) were taken to the 46th Precinct stationhouse. PO Kern allegedly pressed § 87(2)(b)'s face against a wall and rubbed it back and forth (**Allegation H**). PO Morrone allegedly told § 87(2)(b) to “stop being a little bitch” (**Allegation I**). Officers allegedly told § 87(2)(b) a friend of § 87(2)(b)'s who was in the cells, to “Shut the fuck up” (**Allegation J**). PO Greco and other officers allegedly kicked § 87(2)(b) while he was on the ground (**Allegations K and L**).

§ 87(2)(b) was taken to § 87(2)(b). § 87(2)(b) the mother of § 87(2)(b) and § 87(2)(b) went to § 87(2)(b) to visit § 87(2)(b). PO Greco prevented § 87(2)(b) from taking a photograph of § 87(2)(b) inside of the hospital (**Allegation M**). PO Greco pushed § 87(2)(b) out of the hospital (**Allegation N**).

§ 87(2)(b)'s arrest photograph, and the additional photographs taken by § 87(2)(b) show that § 87(2)(b) sustained a cut on his lip, a large laceration on his right cheek, and swelling of his right eye (Board Review 27).

There are several videos in this case taken from surveillance cameras. The first video shows § 87(2)(b) and § 87(2)(b) passing PO Kern and PO Morrone on the street (Board Review 35 for original video). § 87(2)(b) and § 87(2)(b) then turn around and walk in the same direction that PO Kern and PO Morrone were walking.



2015-12-08_9-20-51.mp4

§ 87(2)(b) and § 87(2)(b) walk back in the direction that they came, and PO Kern and PO Morrone stop them (Board Reviews 36 and 37 for original videos). § 87(2)(b) and § 87(2)(b) observe from the sidewalk. PO Morrone places § 87(2)(b) against a car, and § 87(2)(b) is walking around § 87(2)(b). § 87(2)(b) starts running backward as PO Kern runs toward him. They are obscured by a tree for approximately six seconds. § 87(2)(b) falls backward onto the sidewalk (Board Review 37 for original video). PO Morrone holds § 87(2)(b) by the handcuffs as he runs across the street to PO Kern and § 87(2)(b). Additional officers arrive in vehicles and on foot.



2015-12-08_9-28-10.mp4



2015-12-08_9-12-35.mp4

The original videos are located in IAs 48, 50, and 52 (Board Reviews 35-37).

§ 87(2)(g)

§ 87(2)(g)

. The NYPD was ultimately unable to enhance the video.

Mediation, Civil and Criminal Histories

- This case is not suitable for mediation, as § 87(2)(b) was arrested (Board Review 10). § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- Notices of Claim filed by attorney § 87(2)(b) indicate that § 87(2)(b) is suing for \$1,000,000, and § 87(2)(b) is suing for \$5,000,000 (Board Reviews 12 and 13).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB case (Board Review 18).
- This is § 87(2)(b)'s second CCRB case. § 87(2)(b)

- This is § 87(2)(b) third CCRB case § 87(2)(b) [REDACTED]
[REDACTED]
[REDACTED]
- PO Kern has been a member of service for two years and has three cases and nine total allegations. In case number 201412146, a frisk was alleged, and it was closed as unsubstantiated. In case number 201507307, a retaliatory summons, frisk, and search were alleged, and all three allegations were substantiated. Formalized training was recommended by the CCRB, and as of this writing, the NYPD has not made a recommendation or imposed a penalty (Board Review 21).
- PO Morrone has been a member of service for two years and has two cases with seven allegations. In case 20152150, discourtesy and frisk allegations were made, and they were closed as complaint withdrawn (Board Review 22).
- PO Greco has been a member of service for two years. This is his first CCRB case (Board Review 23).

Potential Issues

- § 87(2)(b) and § 87(2)(b) alleged that at the 46th Precinct stationhouse, officers spoke discourteously to their friend, § 87(2)(b) who was inside of a cell. The undersigned was unable to establish contact with § 87(2)(b) throughout the investigation (Board Review 24).
- § 87(2)(b)'s girlfriend, § 87(2)(b) did not cooperate with the investigation (Board Review 24).
- NYPD Documents identified individuals who may have been in the 46th Precinct cells at the same time as § 87(2)(b) and § 87(2)(b). Attempts were made to contact these individuals; however, these attempts were unsuccessful (Board Review 24).

Findings and Recommendations

Explanation of Subject Officer Identification:

- § 87(2)(b) and § 87(2)(b) stated that the name of the officer who stopped, punched, and arrested § 87(2)(b) was PO Morrone, and PO Morrone's partner was the officer who stopped and summonsed § 87(2)(b). PO Kern acknowledged during his CCRB interview that he was the officer who stopped, punched, and arrested § 87(2)(b) § 87(2)(g) [REDACTED]
- § 87(2)(b) and § 87(2)(b) referred to PO Greco by name. PO Greco acknowledged interacting with § 87(2)(b) at the stationhouse and § 87(2)(b) at § 87(2)(b) [REDACTED]. § 87(2)(g) [REDACTED]

Allegations not Pleaded:

- **Abuse of Authority:** § 87(2)(b) alleged that while PO Morrone was handcuffing him, PO Morrone and PO Kern told § 87(2)(b) § 87(2)(b) and § 87(2)(b) that they would be arrested for "failure to disperse" (Board Review 2). Neither § 87(2)(b) nor § 87(2)(b) repeated this allegation (Board Reviews 1 and 3). § 87(2)(g) [REDACTED]

- § 87(2)(g)

§ 87(2)(a) PHL § 18(6), § 87(2)(b)

[REDACTED]

Allegation B—Abuse of Authority: At Ryer Avenue and East 182nd Street in the Bronx, PO Daniel Kern stopped § 87(2)(b)

§ 87(2)(b) stated that he was walking with an open bottle of Corona in his hand when his girlfriend, § 87(2)(b) told him that officers were walking toward them. § 87(2)(b) threw the Corona bottle in a tree. § 87(2)(b) denied being intoxicated, and stated that he had only consumed two small cups of Ciroc vodka over two hours. The officers were approximately three-quarters of a block away from him. § 87(2)(b) did not say anything to the officers, who continued to walk toward him. § 87(2)(b) denied saying “Fuck you, pigs! Bang, bang!” or anything similar. § 87(2)(b) said that he was singing his favorite song, “Best Friend,” with § 87(2)(b). § 87(2)(b) sat on a parked car and talked to § 87(2)(b). After § 87(2)(b) was sitting on the car for one or two minutes, PO Morrone and PO Kern walked past the group. The officers did not say anything to the group, and the group did not say anything to the officers. The officers continued walking, and when they were approximately five feet from the car, PO Morrone turned his head and said, “Is that your car?” § 87(2)(b) replied that it was not. The officers told § 87(2)(b) to get off of the car, and § 87(2)(b) obliged. PO Morrone asked § 87(2)(b) if he lived in the area and what he was doing in the area. § 87(2)(b) replied that he did not have to provide the officers with that information. PO Morrone said that he needed § 87(2)(b) identification. § 87(2)(b) asked what he did wrong and if he was under arrest. PO Morrone never said anything about the open container. PO Morrone handcuffed § 87(2)(b) while PO Kern stood there, watching (Board Review 2).

§ 87(2)(b) § 87(2)(g) denied speaking to the officers as they passed each other, and stated that he never said, “Bang! Bang!” or anything invoking a gun. § 87(2)(b) did not notice the officers until after § 87(2)(b) ditched his beer. § 87(2)(b) denied being intoxicated, and also stated that he had consumed two small cups of

Cirot over several hours. Approximately ten seconds after § 87(2)(b) sat on the parked car, PO Morrone approached, asked if it was his car, and grabbed him. § 87(2)(b) heard PO Morrone say something about the open container, and he placed § 87(2)(b) in handcuffs. § 87(2)(b) said, “Why are you doing this?” and PO Morrone told § 87(2)(b) to move back. § 87(2)(b) started moving back. § 87(2)(b) and § 87(2)(b) grabbed § 87(2)(b) to hold him back, and § 87(2)(b) continued moving away. PO Kern then approached § 87(2)(b) and punched him once in his upper-right ribs (Board Review 1).

§ 87(2)(b) § 87(2)(b) girlfriend, stated that when she first saw the officers walking toward the group, the officers were over a block away from them. She told § 87(2)(b) to ditch his beer, and he did. The officers continued walking, and they reached the spot where § 87(2)(b) threw his beer. § 87(2)(b) did not see the officers look where § 87(2)(b) had thrown the beer, and she did not believe that the officers found the beer. § 87(2)(b) said that no one in the group ever said anything invoking a gun. No one in the group ever followed the officers. Upon viewing the video, § 87(2)(b) testified that when § 87(2)(b) and § 87(2)(b) were walking in the same direction as the officers, they were planning on exchanging one of the flavors of ice cream they were carrying in a black bag. § 87(2)(b) and § 87(2)(b) were singing as they walked toward the store. After walking in that direction, § 87(2)(b) and § 87(2)(b) walked back toward § 87(2)(b) and § 87(2)(b) and sat on a parked vehicle. § 87(2)(b) was sitting on the car for approximately five minutes before the officers arrived. The officers asked § 87(2)(b) if they could see his identification, and § 87(2)(b) said he did not have his identification. PO Morrone said, “Okay, please get off of the car.” § 87(2)(b) obliged. § 87(2)(b) said, “Why are you doing this?” § 87(2)(b) was between § 87(2)(b) and PO Kern, and § 87(2)(b) was pushing § 87(2)(b) out of the way. PO Kern then punched § 87(2)(b) in the face (Board Review 3).

PO Kern’s memo book stated that § 87(2)(b) and § 87(2)(b) were following PO Kern and PO Morrone with an open container of Corona. They were yelling, “Fuck ya! Dicks! Keep walking you fucking pussies! Bang, Bang!” at a loud volume in a residential area. § 87(2)(b) threw a punch at PO Kern and was charged with § 87(2)(b) while the officers were trying to summons § 87(2)(b) PO Kern received scratches and abrasions on his knuckles, and came into blood-on-blood contact with § 87(2)(b) (Board Review 25). § 87(2)(b)

PO Kern stated that he saw § 87(2)(b) and § 87(2)(b) walking toward him. They were being disorderly and seemed under the influence. PO Kern recognized § 87(2)(b) as § 87(2)(b) is known to his command, but he had never personally interacted with him or § 87(2)(b) prior to this date. § 87(2)(b) and § 87(2)(b) were saying things such as “Fuck you,” and “Bang! Bang!” to the officers. The officers passed § 87(2)(b) and § 87(2)(b) on the sidewalk, and did not respond to their taunting in any way. The officers continued walking. After they had walked ten to fifteen feet, the officers looked behind them and saw that § 87(2)(b) and § 87(2)(b) were following them and cursing at them. PO Kern “felt like the officers had to take some kind of action.” PO Kern noticed that § 87(2)(b) and § 87(2)(b) were carrying one 12-ounce glass bottle of Corona each. This was the first time he had noticed the alcohol. PO Kern never saw either of them drop or throw the alcohol at any point. PO Kern and PO Morrone approached them to issue them summonses for the open containers. PO Morrone asked both § 87(2)(b) and § 87(2)(b) for their identification. § 87(2)(b) refused to give

PO Morrone his identification, and PO Morrone placed him in handcuffs. § 87(2)(b) refused to give PO Kern his identification and said, “I’m not giving it to you. Fuck you.” § 87(2)(b) was making a lot of noise and being uncooperative and disorderly. PO Kern thought that he asked § 87(2)(b) for his identification three times. PO Kern stated that § 87(2)(b) would not stop moving around while PO Morrone was trying to issue § 87(2)(b) a summons. PO Kern went to grab § 87(2)(b) to prevent him from moving. PO Kern’s intention in grabbing § 87(2)(b) s arm was to stop him so he could issue him a summons. He intended to place § 87(2)(b) in handcuffs so that he could issue him a summons; his intention was not to arrest him (Board Review 5).

PO Morrone prepared § 87(2)(b) s arrest report. § 87(2)(a) 160.50

Physical force was noted, with “restrain, control, remove” written for the reason. There is no mention of § 87(2)(b) possessing an open container (Board Review 10). § 87(2)(b) summons, which PO Morrone prepared, reads, “The undersigned observed deft. holding a 12-ounce glass bottle Corona beer on a public street in plain view” (Board Review 30).

PO Morrone stated that when the officers first passed § 87(2)(b) and § 87(2)(b) neither group said anything to the other. After the officers walked about 15-20 feet past them, PO Morrone heard § 87(2)(b) and § 87(2)(b) saying, “Hey, you fucking pigs! Bang Bang!” PO Morrone realized that § 87(2)(b) and § 87(2)(b) were following them. The officers told § 87(2)(b) and § 87(2)(b) to go home. § 87(2)(b) imitated a gun with his thumb and forefinger. § 87(2)(b) and § 87(2)(b) continued to follow the officers, and the officers told them a second time to go home. They continued to follow them for another ten feet, and § 87(2)(b) was still gesturing like he had a weapon. The officers turned around again, and PO Morrone noticed for the first time that § 87(2)(b) had an open container of Corona. PO Morrone estimated that he was approximately fifteen feet from § 87(2)(b) when he first saw the Corona bottle. PO Morrone never saw anyone else with alcohol. The officers approached § 87(2)(b) to stop and summons him for the open container and disorderly conduct. PO Morrone had no intention of arresting or summoning § 87(2)(b) PO Morrone had not seen § 87(2)(b) do anything that he could have been arrested for. PO Morrone used his hands to stop § 87(2)(b) from moving. PO Morrone asked § 87(2)(b) for his identification, and § 87(2)(b) said that he did not have identification. PO Morrone testified that had § 87(2)(b) presented identification, PO Morrone would have issued him the summons at the scene. PO Morrone stated that he explained that he needed to take § 87(2)(b) to the stationhouse to verify his identity. No officer ever told PO Morrone that § 87(2)(b) made physical contact with or swung at PO Kern. PO Kern never told PO Morrone why he handcuffed § 87(2)(b) (Board Review 6).

The video shows that the two groups pass and look at each other, but they do not appear to say anything to each other. They walk in opposite directions. Shortly after, § 87(2)(b) and § 87(2)(b) walk in the direction that PO Morrone and PO Kern were walking. They are saying something, but it is unclear what they are saying. They could be singing or speaking to the officers. § 87(2)(b) is carrying a black bag. Neither of them have Corona bottles. Neither of

PO Morrone could not say if § 87(2)(b) was being loud after he was stopped. PO Morrone could not recall what § 87(2)(b) was saying, if anything. PO Morrone denied telling § 87(2)(b) to be quiet or to “Shut the fuck up.” He never heard PO Kern say, “Shut the fuck up,” or “mind your motherfucking business” to anyone. PO Morrone denied using profanity or hearing any officer use profanity during this incident (Board Review 6).

PO Kern did not hear any officer say, “Shut the fuck up,” or use any profanity during this incident. PO Kern denied telling § 87(2)(b) to “mind his motherfucking business,” or using any profanity during this incident (Board Review 5).

§ 87(2)(g)

It is therefore recommended that **Allegations D and E** be closed as **Unsubstantiated**.

Allegation F—Force: At Ryer Avenue and East 182nd Street in the Bronx, PO Daniel Kern used physical force against § 87(2)(b)

Allegation G—Force: At Ryer Avenue and East 182nd Street in the Bronx, PO Marco Morrone used physical force against § 87(2)(b)

§ 87(2)(b) stated that he moved back when PO Morrone told him to do so. As he moved backward, PO Kern punched him once in his upper-right ribs. § 87(2)(b) tried to block the strike, but PO Kern grabbed his arms. § 87(2)(b) continued to move backward, away from PO Kern, and he tripped over a curb behind him. PO Kern jumped on top of § 87(2)(b) as he went to the ground. § 87(2)(b) landed on his stomach with his right cheek on the ground, and his left cheek facing the sky. PO Kern placed his knee on § 87(2)(b)'s head and pushed § 87(2)(b)'s right cheek into the ground. PO Morrone moved his knee back and forth, causing § 87(2)(b) to sustain a large red laceration on his right cheek (Board Review 27 for photos). § 87(2)(b) stated that when PO Kern's knee was on top of § 87(2)(b)'s head, PO Morrone joined PO Kern and placed his knee on the back of § 87(2)(b)'s head. PO Morrone was still holding § 87(2)(b) by his handcuffs when he put his knee on § 87(2)(b)'s head. When § 87(2)(b) was on the ground, PO Kern punched him twice on the left side of the face. PO Kern then placed § 87(2)(b) in handcuffs. § 87(2)(b) acknowledged tensing and moving his arms to prevent being handcuffed. § 87(2)(b) never swung at an officer. After § 87(2)(b) was in handcuffs, PO Kern punched him two additional times in the face. Additional officers arrived, and approximately ten surrounded § 87(2)(b) while PO Kern hit him approximately three more times in the face and jaw (Board Review 1).

§ 87(2)(b) stated that he could not see what was happening to § 87(2)(b) because he was still up against the parked vehicle. § 87(2)(b) heard § 87(2)(b) ask, “Why are you knocking on my brother?” referring to § 87(2)(b). PO Kern grabbed § 87(2)(b)'s arm. § 87(2)(b) said, “What are you doing?” and stepped back. PO Kern then spun § 87(2)(b) around. § 87(2)(b) could not clearly see § 87(2)(b) as PO Morrone still had § 87(2)(b) against the car. Less than one minute later, many more officers arrived. § 87(2)(b) saw officers place knees on § 87(2)(b)'s back. § 87(2)(b) did not see officers punch § 87(2)(b). § 87(2)(b) did not repeat § 87(2)(b)'s allegation that PO Morrone placed a knee on the back of § 87(2)(b)'s head (Board Review 2).

§ 87(2)(b) stated that § 87(2)(b) was trying to push § 87(2)(b) out of the way. PO Kern then punched § 87(2)(b) in the face. § 87(2)(b) moved his hands up to protect his face. § 87(2)(b) never swung at an officer, and he never made physical contact with an officer. PO Kern moved his legs in between § 87(2)(b)s, causing him to trip and fall. PO Kern climbed on top of § 87(2)(b) and punched him four times, causing § 87(2)(b)s nose to bleed. PO Kern placed § 87(2)(b) in handcuffs and called for backup. Many officers arrived, and they formed a circle around § 87(2)(b) and PO Kern. PO Kern punched § 87(2)(b) an additional three times in the face. The officers flipped § 87(2)(b) over onto his stomach. § 87(2)(b) stated another uniformed officer whom she could not describe—not PO Morrone—placed his knee on the back of § 87(2)(b)s head. PO Kern dragged § 87(2)(b) on the ground as he attempted to lift him, causing him to sustain a large laceration on his face (Board Review 3).

PO Kern stated that when he attempted to stop § 87(2)(b) from moving, he reached toward § 87(2)(b)s right arm with his right hand. § 87(2)(b) lifted his right arm up, and then lowered his hand to slap PO Kern's hand down and away from him. § 87(2)(b) ran five or ten feet away from PO Kern, and PO Kern chased after him. § 87(2)(b) turned around, squared up, and threw a punch to the left side of PO Kern's face with his right hand. PO Kern was able to block the punch by raising his left hand to the level of his head. PO Kern punched § 87(2)(b) in the left side of his face. § 87(2)(b) was still in a standing position when PO Kern punched him. § 87(2)(b) immediately fell to the ground from the force of the punch. PO Kern stated that he only punched § 87(2)(b) once (Board Review 5).

PO Kern was shown the video footage three times, and each time, he denied seeing himself punch § 87(2)(b) while he was on the ground. PO Kern reiterated that he punched § 87(2)(b) immediately before he fell to the ground. In the video, PO Kern said he only saw himself "trying to get § 87(2)(b)s hands." Once § 87(2)(b) was on the ground, he flipped onto his stomach and put his arms underneath his stomach. PO Kern told § 87(2)(b) to stop resisting arrest and to give him his arms. § 87(2)(b) did not comply. PO Morrone called for additional units and did not assist PO Kern with the handcuffing. Three or four unidentified uniformed officers helped PO Kern pull § 87(2)(b)s hands out from under his body. No other force was used to place § 87(2)(b) in handcuffs. PO Kern denied punching § 87(2)(b) any other time besides the initial punch when § 87(2)(b) was still standing. PO Kern never saw any other officer punch § 87(2)(b). PO Kern denied placing his knee on any part of § 87(2)(b)s body, and denied placing a knee on his head. He never saw another officer place a knee on § 87(2)(b)s head. PO Morrone was not helping PO Kern with § 87(2)(b) because he was still dealing with § 87(2)(b). PO Kern stated that PO Morrone walked with § 87(2)(b) to PO Kern and § 87(2)(b) when he saw PO Kern "in combat with" § 87(2)(b). PO Morrone called for additional units. PO Morrone never made physical contact with § 87(2)(b). The officers rolled § 87(2)(b) onto his back, sat him up, and lifted him into a standing position. PO Kern never dragged § 87(2)(b) at any point, and never saw another officer drag § 87(2)(b). PO Kern only noticed a cut on § 87(2)(b)s lip. He thought that § 87(2)(b) sustained the cut when PO Kern punched him. § 87(2)(b) did not complain about other injuries besides the cut to his lip. PO Kern stated that he sustained cuts and scrapes on his knuckles when his knuckles brushed against the ground as he was trying to rotate § 87(2)(b) onto his back (Board Review 5).

The Criminal Court Complaint, in which PO Morrone was deposed, states that only § 87(2)(b) was observed with an open container of alcohol. While they were attempting to summons § 87(2)(b) for the open container, § 87(2)(b) struck PO Kern in the hand with an

open palm. § 87(2)(b) struck PO Kern one time in the face and one time in the shoulder. § 87(2)(b) then flailed his arms and twisted his body to avoid being handcuffed (Board Review 14).

PO Morrone stated that after he frisked § 87(2)(b) he heard a “scuffle” behind him. He turned around and saw that § 87(2)(b) and PO Kern had disappeared. He did not hear what had preceded this, since his attention was on § 87(2)(b) and § 87(2)(b) was behind him. PO Morrone stated that the scuffle he heard sounded like § 87(2)(b) and PO Kern were “trying to get at each other.” PO Morrone handcuffed § 87(2)(b) immediately after he realized PO Kern had disappeared because he was fearful of his environment, and § 87(2)(b) did not have identification. PO Morrone called for additional units over the radio. PO Morrone then looked across the street and saw that PO Kern was “fighting with § 87(2)(b) across the street. PO Kern was on top of § 87(2)(b) and § 87(2)(b) was lying on his back, swinging his arms. PO Morrone did not see § 87(2)(b) go to the ground. PO Morrone only saw § 87(2)(b) swinging his arms for a brief moment because he was dealing with § 87(2)(b) PO Morrone saw that PO Kern was trying to handcuff § 87(2)(b) PO Morrone crossed the street so that he was on the same side as § 87(2)(b) and PO Kern. PO Morrone acknowledged being approximately two feet from § 87(2)(b) At that point, many officers arrived. PO Kern tried to roll § 87(2)(b) over. Officers surrounded PO Kern, and PO Morrone could no longer see him. PO Morrone stated he never saw PO Kern punch § 87(2)(b) PO Morrone did not see who handcuffed § 87(2)(b) and could not say how long it took to handcuff him. PO Morrone did not see how officers brought § 87(2)(b) off of the ground. He never saw an officer drag § 87(2)(b) The only injury PO Morrone ever noticed on § 87(2)(b) was his lip bleeding when he was on the ground and PO Kern was trying to handcuff him. PO Morrone stated that he did not know how § 87(2)(b) sustained this injury, and he did not see anything that could have led to him sustaining this injury. PO Morrone knew that PO Kern sustained an injury to his knuckle, but he did not know how he sustained this (Board Review 6).

PO Greco stated that when he responded to the call for backup, there were ten officers present at the scene. PO Greco saw one male (he was unsure if it was § 87(2)(b) or § 87(2)(b) standing against a wall, and one male on the ground. Both males were in handcuffs. No officers were on top of the male on the ground, and no force was used against the male on the ground. PO Greco never saw any officer with a knee on either male’s head. PO Greco estimated he was at the scene for approximately two minutes. PO Greco learned from Sgt. Beharry at some point during the incident that PO Kern had punched § 87(2)(b) in the face. PO Greco did not speak to PO Kern or PO Morrone about the incident (Board Review 7).

Sgt. Beharry also stated that § 87(2)(b) and § 87(2)(b) were both in handcuffs when Sgt. Beharry arrived at the scene. Sgt. Beharry noticed that § 87(2)(b) had a bloody nose, but did not notice any other injuries (Board Review 8).

The Medical Treatment of Prisoner Form notes, “Perp received laceration under nose, bleeding heavily, right side of face, cheek bone, bruise” (Board Review 26). PO Kern stated that this description referred to § 87(2)(b)’s bleeding lip. PO Kern denied seeing any injuries to § 87(2)(b)’s cheek (Board Review 5).

The video footage shows PO Morrone placing § 87(2)(b) against a vehicle, and § 87(2)(b) walking nearby. He is close to PO Morrone and § 87(2)(b) and is saying something, but does not otherwise interfere. He does not make contact with PO Morrone, PO Kern, or § 87(2)(b) § 87(2)(b) and § 87(2)(b) are speaking to him. PO Kern then approaches § 87(2)(b) and lifts his right arm. § 87(2)(b) who is facing PO Kern, lifts his right arm up and away from PO Kern. § 87(2)(b) runs the opposite direction, and PO Kern, § 87(2)(b) and § 87(2)(b)

follow. § 87(2)(b) and PO Kern are temporarily obscured by a tree, and § 87(2)(b) falls on his back onto the sidewalk. The video footage is very grainy, and does not clearly show what occurs next: PO Kern either punches § 87(2)(b) in the face one time while he is on the ground, or PO Kern is pulling his arm away from § 87(2)(b). PO Morrone walks across the street, holding on to § 87(2)(b) handcuffs. PO Kern is on the ground with § 87(2)(b) for several minutes, but it is impossible to see what is happening, as they are either too far from the camera or out of its frame. Many officers arrive and stand around § 87(2)(b) who remains on the ground. The footage does not show any officer placing a knee on § 87(2)(b). No officer drags § 87(2)(b).



2015-12-08_9-12-35.mp4



2015-12-08_9-28-10.mp4



2015-12-08_9-20-51.mp4

PO Kern stated that he was trying to stop § 87(2)(b) from moving so that he could issue him a summons for possessing an open container of alcohol. As established above, the investigation determined that § 87(2)(b) did not have an open container of alcohol when PO Kern stopped him. PO Kern's stated reason for punching § 87(2)(b) when he was standing was that § 87(2)(b) allegedly smacked his hand away, ran from PO Kern, turned, and swung at PO Kern. The video footage shows PO Kern approaching § 87(2)(b) with his right arm raised, while § 87(2)(b) raises his right arm and moves away from PO Kern. § 87(2)(b) and PO Kern are obscured by a tree for six seconds before § 87(2)(b) falls to the ground.

§ 87(2)(b) and § 87(2)(b) testified that PO Kern also punched § 87(2)(b) while he was on the ground. PO Kern denied punching § 87(2)(b) while he was on the ground. He only acknowledged the single punch when § 87(2)(b) was standing. PO Kern stated he did not know how § 87(2)(b) sustained a swollen eye or the laceration to his face.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation F** be closed as **Substantiated**.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation G** be closed as **Unfounded**.

Allegation H—Force: At the 46th Precinct stationhouse, PO Daniel Kern used physical force against § 87(2)(b)

§ 87(2)(b) stated that officers took him to the cell area inside of the stationhouse, but did not place him in one of the cells. While § 87(2)(b) was still in handcuffs, PO Kern placed § 87(2)(b)'s face against the wall, applied his forearm to the back of § 87(2)(b)'s head, and moved his face back and forth against the wall. § 87(2)(b) estimated that PO Kern did this for fifteen seconds. § 87(2)(b) yelled, “Why are you doing that to him?” (Board Review 1).

§ 87(2)(b) corroborated that PO Kern rubbed § 87(2)(b)'s face against the wall (Board Review 2).

§ 87(2)(b) was not inside of the stationhouse, but she stated that she saw EMTs carry § 87(2)(b) out of the stationhouse and into an ambulance. § 87(2)(b) thought that § 87(2)(b) looked much worse than when she saw him at the scene. His face was very swollen and there was a great deal of blood on his face (Board Review 3).

The Command Log entry for § 87(2)(b) noted in the margin: “Violent EDP.” It also noted that § 87(2)(b) had a bloody nose (Board Review 29).

PO Kern stated that § 87(2)(b) was throwing himself to the ground at the stationhouse. PO Kern did not recall § 87(2)(b) being placed up against the wall. PO Kern denied pushing § 87(2)(b)'s face against the wall and rubbing it back and forth. PO Kern stated he had little interaction with § 87(2)(b) at the stationhouse; Sgt. Beharry was with § 87(2)(b). PO Kern was preparing his Line of Duty paperwork. PO Kern denied seeing any other injuries besides the cut to his lip. The desk sergeant called the ambulance for § 87(2)(b) (Board Review 5).

PO Morrone stated that he never saw § 87(2)(b) placed up against a wall. He denied rubbing § 87(2)(b)'s face against the wall, and he never saw another officer do this. PO Morrone was dealing with § 87(2)(b) at the stationhouse. PO Morrone never saw § 87(2)(b) do anything at the stationhouse that would have led officers to classify him as a violent Emotionally Disturbed Person (Board Review 6).

PO Greco stated that § 87(2)(b) was not placed in a cell because there was so much blood on his face. § 87(2)(b) initially was placed up against a wall on the outside corridor of the holding cell area. § 87(2)(b) was seated on the ground because there was no chair in the vicinity. § 87(2)(b) wanted to lie on the ground, and PO Greco allowed him to do so, but turned him on his side so that he would not choke on his blood. PO Greco said that he thought § 87(2)(b) was bleeding from his lip, left cheek, nose, and mouth. PO Greco stayed with § 87(2)(b) until EMS arrived. PO Greco never rubbed § 87(2)(b)'s face against the wall, and he never saw another officer do this. § 87(2)(b) never did anything that would have led him to sustain any additional injuries. He never banged his face against the ground. § 87(2)(b) was yelling, “Ahh!” continuously and said that his face was full of blood. PO Greco did not suspect that § 87(2)(b) or § 87(2)(b) were intoxicated. PO Greco thought that only § 87(2)(b)'s constant screaming would have led someone to classify him as an Emotionally Disturbed Person. PO Greco did not observe anything that indicated § 87(2)(b) was a violent Emotionally Disturbed Person. PO Greco thought that § 87(2)(b) might have been experiencing some emotional trauma from what had occurred earlier in the evening. PO Greco did not tell medical personnel that § 87(2)(b) was banging his head against the floor or the cells. PO Greco said, “We were told that he was assaulted—that he was struck during the altercation—by the police” (Board Review 7).

Sgt. Beharry, PO Kern and PO Morrone's supervisor, stated that to his recollection, he never saw § 87(2)(b) standing against a wall. Sgt. Beharry denied seeing an officer take § 87(2)(b)'s face and rub it against the wall (Board Review 8).

Sgt. Shevitz, the desk sergeant, stated that he never saw § 87(2)(b) standing up against a wall. He never saw an officer rub § 87(2)(b)'s face against the wall. Sgt. Shevitz acknowledged writing "violent EDP" in the Command Log, and said that he believed § 87(2)(b) was an emotionally disturbed person because he "was not being rational." Sgt. Shevitz could not recall what § 87(2)(b) was saying that made him believe this. Sgt. Shevitz thought that he recalled § 87(2)(b) fighting with EMS. He did not recall if he saw him acting violently or making threatening remarks toward officers. Sgt. Shevitz never saw or learned of § 87(2)(b) or § 87(2)(b) banging his head against the floor at the stationhouse. Sgt. Shevitz did not recall if he saw injuries on § 87(2)(b) (Board Review 9).

§ 87(2)(g)

It is therefore recommended that **Allegation H** be closed as **Unsubstantiated**.

Allegation I—Discourtesy: At the 46th Precinct stationhouse, PO Marco Morrone spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that after PO Morrone handed him his summons, § 87(2)(b) refused to put on his clothes because he "wanted people to see how he was treated inside of the stationhouse." § 87(2)(b) never learned why or how he came to be undressed. PO Morrone said, "If you don't put on your clothes, you're not going to get out. Stop being a little bitch and put on your clothes" (Board Review 2).

PO Morrone stated that § 87(2)(b) was "acting crazy" at the stationhouse, and was throwing himself against the floor, "like a child does; like he was trying to harm himself." PO Morrone did not recall what part of his body was making contact with the ground. PO Morrone stated that § 87(2)(b) never took off his clothes, and his clothes were never removed for any reason. He walked out of the stationhouse on his own volition. PO Morrone denied using any profanity during this incident (Board Review 6).

No officer acknowledged telling or hearing PO Morrone tell § 87(2)(b) to "stop being a little bitch" (Board Reviews 5, 7, 8, and 9).

§ 87(2)(g)

It is therefore recommended that **Allegation I** be closed as **Unsubstantiated**.

Allegation J—Discourtesy: At the 46th Precinct stationhouse, officers spoke discourteously to § 87(2)(b)

Allegation K—Force: At the 46th Precinct stationhouse, PO Frank Greco used physical force against § 87(2)(b)

Allegation L—Force: At the 46th Precinct stationhouse, officers used physical force against § 87(2)(b)

§ 87(2)(b) stated that at the stationhouse, he was placed in a chair. He was in a great deal of pain, and he fell off of the chair and landed with his stomach on the floor. He was

screaming and crying because he was in pain. An individual § 87(2)(b) knew, § 87(2)(b) was inside one of the cells. § 87(2)(b) said to the officers, “He needs to take his medicine!” Two officers whom § 87(2)(b) could not describe yelled to § 87(2)(b) “Shut the fuck up! Are you his lawyer?” Three different officers, including PO Greco and two other officers whom § 87(2)(b) could not describe, kicked § 87(2)(b) while he was on the ground (Board Review 1).

§ 87(2)(b) stated that after he saw PO Kern rub § 87(2)(b)'s face against the wall, he lost consciousness for an unknown amount of time. When he awakened, he was wearing only his underwear and handcuffs. § 87(2)(b) did not corroborate the officers speaking discourteously to § 87(2)(b) or using physical force against § 87(2)(b) § 87(2)(g)

PO Greco stated that he heard individuals in the cells yelling profanities. PO Greco heard one officer say, “Let us take care of it. Mind your own business.” PO Greco did not recall hearing an officer say, “Shut the fuck up” to individuals inside of the cells. PO Greco never said anything to the people inside of the cells. PO Greco stayed with § 87(2)(b) until EMS arrived. He thought that three other officers were with him, but he could not recall who they were. PO Greco never kicked § 87(2)(b) at any point, and he never saw or learned of another officer kicking § 87(2)(b) at any point (Board Review 7).

No officer acknowledged kicking or seeing an officer kick § 87(2)(b) inside of the stationhouse. No officer acknowledged telling or hearing someone tell an individual in the cells to “Shut up,” or “Shut the fuck up” (Board Reviews 5, 6, 8, and 9).

§ 87(2)(g) It is therefore recommended that **Allegation J** be closed as **Victim Unavailable**.

§ 87(2)(g) It is therefore recommended that **Allegation K** be closed as **Unsubstantiated**.

§ 87(2)(g) It is therefore recommended that **Allegation L** be closed as **Officers Unidentified**.

Allegation M—Abuse of Authority: At § 87(2)(b), PO Frank Greco prevented § 87(2)(b) from photographing an incident.

Allegation N—Force: At § 87(2)(b), PO Frank Greco used physical force against § 87(2)(b)

§ 87(2)(b) stated that she tried to enter § 87(2)(b), but hospital personnel prevented her from doing so. She and § 87(2)(b) were finally given permission to enter, and went to find § 87(2)(b) § 87(2)(b) used her cell phone to take a photo of § 87(2)(b) in his hospital bed. Immediately after, PO Greco tried to snatch § 87(2)(b) phone from her hand. PO Greco never told her not to take photos or issued her any commands. PO Greco then pushed her by the back into a wall, and led her out of the room. § 87(2)(b) did not sustain any injuries as a result of this incident (Board Review 4).

§ 87(2)(b) stated that officers from the 46th Precinct would not allow them to enter the hospital. After approximately 20 minutes, an officer from Hospital Police told them that family members could visit § 87(2)(b) § 87(2)(b) and § 87(2)(b) entered the hospital. § 87(2)(b) tried to wake up § 87(2)(b) by shaking him. § 87(2)(b) took a photo of § 87(2)(b)

§ 87(2)(b) and immediately after, officers from the 46th Precinct pushed § 87(2)(b) on the back and led her and § 87(2)(b) out of the hospital. § 87(2)(b) could not say how many officers were present—he only recalled one officer who was identified as PO Greco (Board Review 2).

The incident report prepared by five security officers from § 87(2)(b) states: “Sgt. Hernandez... requested additional due to the family and friends of patient Trauma Bay § 87(2)(b) who was under police custody became uncooperative with police officers’ orders. NYPD officers physically removed one male and one female from ED-1... There were plenty more friends and family on the ER Ramp Taking pictures.” Another hospital officer noted, “Visitor was later identified as the patient’s brother. He wanted to come to see the patient several times, but visiting restrictions were put on for said patient. The visitor wanted an officer from the 46th Precinct to explain why the family couldn’t visit said patient... While I was walking back to ED1 to speak to the officer; [the visitor] rushed in behind me and started to argue with the officers with said patient in § 87(2)(b). He was asked several times by me and by the officers to leave. Visitor would not leave. The visitor’s mom then came in and started to take pictures from her cell phone, and was physically put out of the ER... I tried explaining that they couldn’t record or come inside” (Board Review 31).

PO Greco’s memo book notes: “Family members of perpetrator entered hospital without permission from security. Had to be escorted out. Force was used. 10-85 call additional unit—disorderly group to be removed from hospital” (Board Review 32).

PO Greco stated that hospital security officers told him that § 87(2)(b)’s family members were attempting to enter the hospital, and were repeatedly told that they could not. A security officer approached PO Greco and told him that § 87(2)(b) and § 87(2)(b) snuck past him and entered the hospital when he was not looking. PO Greco said to § 87(2)(b) and § 87(2)(b) inside the trauma unit, “You cannot be in here. Please leave. Please leave the location.” § 87(2)(b) took out her phone and was about to take a photograph. PO Greco stated, “You cannot be in here. You cannot be taking pictures.” PO Greco prevented her from taking the picture by grabbing her forearm and pulling her toward the door. PO Greco told her to put her phone away. § 87(2)(b) turned around and said, “Don’t push me!” A nurse said, “You cannot be in here. This is a trauma unit. You need to leave.” PO Greco decided to touch her at that moment because she was not complying with his commands to leave. PO Greco acknowledged that had she not tried to take the photograph, PO Greco would not have pushed her out. PO Greco tried to escort § 87(2)(b) and § 87(2)(b) out of the hospital. § 87(2)(b) was near the doorway, and she quickly approached PO Greco. PO Greco placed both of his hands on her back and pushed her out of the doorway (Board Review 7).

Patrol Guide 210-02 notes that family members can only visit hospitalized individuals in police custody after obtaining written authorization from the precinct’s desk officer (Board Review 34). Patrol Guide 203-11 permits officers to use the minimum amount of force necessary (Board Review 33).

The hospital security officers’ statements established that § 87(2)(b) was not permitted to take photographs or record inside of the trauma unit. PO Greco acknowledged preventing her from photographing by grabbing her forearm and pulling her toward the door. § 87(2)(g)

§ 87(2)(b) As such, it is recommended that

Allegation M be closed as **Exonerated**.

§ 87(2)(g)

§ 87(2)(g)

As such, it is recommended that **Allegation N** be closed as **Exonerated**.

Squad: 9

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date